

Munnu Lal v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 17 November 2025 · Writ-C No. 40037 of 2025 · **Writ dismissed; relegated to Clause 7.7.6 appeal.**

HEADNOTE

A writ challenging rejection of a new-connection application on the ground that ownership papers were not filed will not be entertained under Article 226 where Clause 7.7.6 of the U.P. Electricity Supply Code, 2005 provides a statutory appeal; whether those papers were filed is a question of fact for that authority.

FACTUAL SUMMARY

The petitioner, Munnu Lal, applied for an electricity connection and says he enclosed all required papers, including proof of ownership. The Executive Engineer, Electricity Urban Distribution Division, Prayagraj, rejected the application on 8 August 2025 on the finding that no ownership document had been filed. Challenging that order as perverse and contrary to the record, the petitioner sought a writ. The respondents objected that Clause 7.7.6 of the U.P. Electricity Supply Code, 2005 provided a statutory appeal and that the dispute was factual.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7

appeal against rejection of new connection

HOLDING

Whether ownership documents were filed with a new-connection application is a question of fact for the competent authority under Clause 7.7.6; a writ under Article 226 will not be entertained. The petition is dismissed for alternative remedy. If the petitioner prefers a representation under Clause 7.7.6 within two weeks, the authority shall decide it expeditiously, preferably within two weeks of filing. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER FILED OWNERSHIP DOCUMENTS WITH THE CONNECTION APPLICATION, AND WHETHER THE REJECTION DATED 08.08.2025 WAS PERVERSE

¶ 5